

STATE OF NEW YORK

5277--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. STERN, LAVINE, DURSO, FITZPATRICK, GRIFFIN, RAMOS, KASSAY, BURROUGHS, GANDOLFO, SCHIAVONI, SOLAGES, SMITH, MIKULIN -- read once and referred to the Committee on Transportation -- recommended to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT relating to designating the Nassau-Suffolk transportation coordinating committee as the metropolitan planning organization for Long Island

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Nassau-Suffolk transportation coordinating committee. The
2 Nassau-Suffolk transportation coordinating committee ("the committee")
3 seeks to withdraw from the New York metropolitan transportation council
4 (NYMTC) formed in 1982 pursuant to an MOU adopted by its member organ-
5 izations and approved by the governor and the legislature through resol-
6 ution. The Nassau-Suffolk transportation coordinating committee shall,
7 upon passage of this act and approval of the governor, be designated to
8 act as the metropolitan planning organization for purposes of receipt of
9 federal transportation assistance for the counties of Nassau and Suffolk
10 and, in cooperation with the state and publicly owned operators of mass
11 transportation services, for carrying out the urban transportation plan-
12 ning process specified in 23 CFR 450 and 49 CFR 613 and other applicable
13 federal regulations.

14 § 2. Purpose. 1. It is the purpose of this legislation to delineate
15 the roles and responsibilities and administrative, decision making, and
16 staffing arrangements for the committee to carry out transportation
17 planning and programming to continue Nassau and Suffolk counties' quali-
18 fication for federal transportation assistance.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. The Nassau-Suffolk transportation coordinating committee is contin-
2 ued, with voting membership to include:

- 3 (a) the Nassau county executive;
- 4 (b) the Suffolk county executive;
- 5 (c) the chair of the metropolitan transportation authority;
- 6 (d) the commissioner of the New York state department of transporta-
7 tion; and
- 8 (e) the chair of the Long Island regional planning council.

9 3. The foregoing representation of the participating units of govern-
10 ment is not intended to indicate a proportional or any other kind of
11 weighting for voting purposes and such representation shall remain in
12 effect only as long as committee decisions are reached by consensus as
13 defined in this act.

14 4. Advisory, non-voting membership on the committee shall include the
15 federal highway administration, urban mass transportation adminis-
16 tration, United States environmental protection agency, and the New York
17 state department of environmental conservation.

18 5. Members of the committee may be represented by designated substi-
19 tutes. Such designation shall be in writing to the secretary of the
20 committee.

21 § 3. Officers. 1. Executives of each county shall serve as the perma-
22 nent co-chairs of the committee with functional responsibility for
23 committee operations.

24 2. The transportation coordinating committee shall elect officers
25 according to its bylaws or operating procedures, except that the New
26 York state department of transportation shall perform secretarial
27 services for the transportation coordinating committee.

28 § 4. Voting. All actions taken by the Nassau-Suffolk transportation
29 coordinating committee shall be by majority vote.

30 § 5. Central staff. To meet areawide transportation planning needs and
31 to provide centralized services to the transportation coordinating
32 committee a central staff, and a staff director appointed by the commit-
33 tee from a list provided by the permanent co-chair. The staff director
34 shall be accountable to the committee for results of that portion of the
35 transportation planning program assigned to the central staff, and for
36 the economy and efficiency of the central staff operation. Central
37 staff activities shall be limited to transportation and transportation
38 related matters and may include:

- 39 1. data collection, monitoring and analysis;
- 40 2. demographic analysis and forecasting;
- 41 3. strategic transportation planning;
- 42 4. regional transportation systems planning;
- 43 5. travel simulation and modelling and other technical planning and
44 planning services;
- 45 6. mapping services;
- 46 7. administrative services including contract administration; and
- 47 8. special studies of regional significance.

48 § 6. Unified planning work program. 1. The committee shall establish
49 goals, objectives, criteria, and standards for the development of work
50 programs for the use of federal and other planning funds.

51 2. The unified planning work program shall comprise the following
52 major work elements:

- 53 (a) central staff;
- 54 (b) transportation coordinating committee staff;
- 55 (c) subregional pass through;
- 56 (d) transit operators planning program; and

(e) special studies.

3. (a) The work program of the central staff shall be determined annually by the committee.

(b) A method for distributing funds for special studies shall be determined annually by the committee.

§ 7. Application for urban mass transportation funds. 1. The department of transportation shall, on behalf of the committee, make application annually to the urban mass transportation administration and to other federal agencies as may be appropriate, for funds to support the committee's planning program. The department shall make such funds, as well as funds received from the federal highway administration, available to the committee for its decision on their use and distribution. The department shall be the urban mass transportation administration grant applicant for the central staff, transportation coordinating committee staff, and subregional pass through work elements of the unified planning work program. Applicants for urban mass transportation administration grants to support the transit operators planning and special studies work elements shall be determined annually in the unified planning work program.

2. The committee shall authorize the department of transportation and others as appropriate, to accept on behalf of the committee, the transfer of current grants that have been awarded to the committee.

§ 8. Funding. 1. For the program year starting July 1, 2026, the allocation of funds to be made for the above major program elements except for special studies, shall be determined by the committee.

2. For the program year starting July 1, 2026, pass through funds shall be made available to each county in proportion to its 2020 population.

§ 9. Transportation plans. 1. The committee shall develop and review annually areawide transportation goals and objectives, considering federal and state policies and requirements.

2. The committee shall develop and review and update as necessary, a transportation plan, consisting of long-range and short-range elements, including transportation systems management components.

3. The committee shall examine and endorse the plan as meeting the requirements of 23 CFR 450 and 49 CFR 613.

§ 10. Transportation improvement program. 1. The committee shall develop and update annually a transportation improvement program in cooperation with state and local officials, regional and local transit operators, recipients authorized under section five of the Urban Mass Transportation Act (49 USC 1604), and with input from other affected transportation and regional and local planning and implementing agencies. The transportation improvement program shall consist of improvements recommended from the short-range and long-range elements of the transportation plan developed under this act, and continuing or special planning studies.

2. The committee shall incorporate the transportation improvement program annually into an areawide transportation improvement program, including projects of a regional nature recommended by the program, finance, and administration committee as initiated pursuant to title IX of chapter one of the United States code, and shall endorse the program as meeting the requirements of 23 CFR 450 and 49 CFR 613.

§ 11. Program, finance and administration committee. 1. The committee shall establish a program, finance and administration committee, to be composed of staff representatives of the New York state department of transportation, the metropolitan transportation authority, and one to be

1 appointed by each Suffolk and Nassau counties. The central staff direc-
2 tor shall serve as secretary to the committee.

3 2. The program, finance and administration committee shall be respon-
4 sible for overseeing day-to-day operations of the metropolitan planning
5 organization, including the following activities:

6 (a) monitoring and coordinating progress of the committee's unified
7 planning work program to assure adherence to budgets and consistency
8 with federal regulations and local, state and federal objectives, and

9 (b) minor revisions to budgets and other aspects of the work program,
10 as necessary during the program year.

11 3. The program, finance and administration committee shall, in cooper-
12 ation with the committee, develop annually a draft unified planning work
13 program consistent with the requirements of 23 CFR 450 and 49 CFR 613,
14 for recommendation for endorsement by the committee at its annual meet-
15 ing. The work program shall include central and subregional staff activ-
16 ities, committee member activities, and special studies.

17 4. Upon the initiation by any committee member of a project of region-
18 wide significance, or changes to such projects, which must receive
19 metropolitan planning organization endorsement during the interval
20 between committee meetings, the program, finance and administration
21 committee shall be authorized to act for the committee to include such
22 project or make such changes with respect thereto in the committee's
23 transportation improvement program. To the extent possible such trans-
24 portation improvement program changes shall be recommended by the
25 program, finance and administration committee to the committee at its
26 next meeting.

27 5. Upon the endorsement by the committee of a change in its transpor-
28 tation improvement program, which change must for some reason be incor-
29 porated in the transportation program during the interval between the
30 committee's annual meetings, the program, finance and administration
31 committee shall be authorized to act for the committee to make such
32 incorporation and shall make such incorporation, provided that the
33 change is consistent with plans adopted by the committee.

34 6. Upon the request of any committee member of a change in the commit-
35 tee's unified planning work program, including the program budget or
36 budgets, which for some reason must receive metropolitan planning organ-
37 ization endorsement during the interval between committee meetings, the
38 program, finance and administration committee shall be authorized to act
39 for the committee to make such a change. All actions taken by the
40 program, finance and administration committee concerning the unified
41 planning work program shall be reported to all committee members within
42 five working days. Such actions shall be effective unless a negative
43 response is received from a committee member within ten working days.

44 § 12. Coordination with adjacent metropolitan planning organizations.
45 Within six months from the effective date of this act, the committee
46 shall develop procedures for coordinating its plans and programs, and
47 its planning and programming processes, with adjacent metropolitan plan-
48 ning organizations in the states of New York, New Jersey, and Connecti-
49 cut. The committee shall appoint a representative to work with these
50 metropolitan planning organizations and to report back to the committee
51 with recommendations on this matter as soon as possible.

52 § 13. Meetings and agendas. 1. The committee shall have an annual
53 meeting, held each year between January fifteenth and February
54 fifteenth. Its business agenda shall include:

55 (a) Election of chairperson;

1 (b) Endorsement of a transportation improvement program with an annual
2 element;

3 (c) Endorsement of a committee transportation plan;

4 (d) Other business items requested by any member.

5 2. Special committee meetings may be called at the request of any
6 member of the committee at any time, upon written request to the secre-
7 tary of the committee.

8 3. The secretary shall be responsible for scheduling all meetings.

9 4. A quorum for any committee meeting shall be two-thirds of its
10 voting members.

11 § 14. Central staff operation. 1. The department of transportation
12 shall provide for the financial operations of the central staff and
13 ensure that the central staff activities are in compliance with applica-
14 ble laws and regulations. The relative responsibilities of the committee
15 and the department for the central staff are detailed below. In all
16 cases the responsibilities of the committee for the central staff shall
17 be carried out on a day-to-day basis by the program, finance and admin-
18 istration committee.

19 2. The committee shall be responsible for:

20 (a) Program results:

21 (i) Assuring that the desired results or benefits of the central
22 staff's work are being achieved, including that the unified planning
23 work program activities are on schedule, of proper quality, and are
24 documented and reported on in an appropriate manner.

25 (ii) Assuring that the urban transportation planning objectives estab-
26 lished by the federal regulations and the committee itself are being
27 met, including that the unified planning work program elements are
28 responsive to federal planning requirements and area transportation
29 issues and problems.

30 (b) Economy and efficiency of central staff operation:

31 (i) Assuring that desired results are achieved at lowest cost, includ-
32 ing that central staff size, salary levels and other costs are appropri-
33 ate and planning methods well chosen.

34 (ii) Assuring that the central staff is managing or utilizing its
35 resources (personnel, property, space, etc.) in an economical and effi-
36 cient manner, including that management information systems, administra-
37 tive procedures, organizational structures and other management tools
38 are adequate.

39 (c) Selecting consultants to perform activities in the central staff
40 work program as provided for in the approved unified planning work
41 program and negotiating professional services agreements, except that
42 the department shall be entitled to have a representative in all
43 consultant selection decisions and fee negotiations that affect
44 contracts held by the department on behalf of the committee;

45 (d) Approving all required task work programs (task amplifications)
46 and preparing those required for central staff activities;

47 (e) Providing funds for a central staff director and directing such
48 person to:

49 (i) Manage central staff planning activity to ensure continued compli-
50 ance with federal and state regulations;

51 (ii) Prepare and maintain work budgets for all central staff planning
52 activities and cash flow budgets for central staff operations;

53 (iii) Assist the department in establishing acceptable ledgers and
54 accounting procedures to maintain complete and accurate records pertain-
55 ing to revenues, expenses, work performed, and cash on hand;

1 (iv) Assist the department in preparing appropriate documentation of
2 payrolls, time records, grant charges, invoices, vouchers, purchases,
3 and other expenses in accordance with state and federal requirements;

4 (v) Assist the department with the establishment and maintenance of
5 central staff-related accounting records and bookkeeping procedures;

6 3. The department of transportation shall be responsible for:

7 (a) Prefinancing the central staff operation for the committee prior
8 to reimbursement;

9 (b) Employing central staff and paying central staff salaries and
10 fringe benefits;

11 (c) Paying central staff operating expenses and program costs in
12 accordance with the approved unified planning work program;

13 (d) Controlling central staff revenues, expenditures, assets, and
14 liabilities to the extent necessary to meet the department's obligations
15 with respect to the state funds involved;

16 (e) Purchasing, receiving, accounts payable, payroll and billings;

17 (f) Assuring that the central staff operation is in full compliance
18 with all applicable federal, state, and local laws and regulations,
19 including that all central staff activities are eligible for reimburse-
20 ment and that all matching requirements are met.

21 4. The state shall provide the non-federal share of central staff
22 financing as detailed in the unified planning work programs.

23 § 15. This act shall take effect immediately.